STATE OF NEW YORK

PUBLIC SERVICE COMMISSION

PROCEEDING ON MOTION OF THE COMMISSION AS TO THE RATES CHARGES, RULES AND REGULATIONS OF CONSOLIDATED EDISON COMPANY OF NEW YORK

CASE NO. 25-E-0072

AND

CASE NO. 25-G-0073

DIRECT TESTIMONY OF ELIJAH REICHLIN-MELNICK

ON BEHALF OF:

WESTCHESTER COUNTY EXECUTIVE KENNETH W. JENKINS

AND THE COUNTY OF WESTCHESTER

MAY 30, 2025

MICHAELIAN COUNTY OFFICE BUILDING

148 MARTINE AVENUE, 9TH FLOOR

WHITE PLAINS, NY 10601

INTRODUCTION

Q. Please state your name and business address.

A. My name is Elijah Reichlin-Melnick. My business address is the Michaelian Westchester County Office Building located at 148 Martine Avenue, 9th Floor in White Plains, NY 10601.

Q. Are you representing anyone in this proceeding?

A. Yes.

Q. Who are you representing?

A. On March 11, 2025, Westchester County Executive Kenneth W. Jenkins signed legislation approved unanimously by the Westchester County Board of Legislators authorizing Westchester County to become a party to the rate cases that are the subject of these proceedings. (Exhibit__(ERM-04), 1-2) I was designated by County Executive Jenkins as the Intervenor to represent the County of Westchester in these proceedings. My testimony is offered on behalf of County Executive Jenkins and Westchester County.

Q. Please describe your professional experience.

A. I currently serve as the Assistant Director of Energy Conservation and Sustainability for Westchester County, a position I have held since June of 2023.

In this role, I focus on the County's efforts to reduce energy consumption, improve the efficiency of county government operations with respect to climate change and the production of greenhouse gasses, and plan strategies for addressing the impacts of climate change. Prior to this role, I was a member of the New York State Senate for two years, during which time I became familiar with many energy-related issues through the process of writing, debating, and voting on legislation. I hold a Masters in City & Regional Planning from Rutgers University and a Bachelor of Arts in History and Government from Cornell University.

Q. Have you previously testified before the New York State Public Service Commission?

A. No, this is the first time I have testified in a rate case.

Q. Are you sponsoring any exhibits?

A. Yes, I am sponsoring four (4) exhibits, as follows:

- Exhibit__(ERM-01): The Company's responses to certain information requests ("I/R") made by Westchester County in these proceedings
- Exhibit__(ERM-02): The Company's responses to certain information requests ("I/R") made by other parties in these proceedings including the

Department of Public Service, the Westchester Municipal Coalition and the Public Utility Law Project

- Exhibit__(ERM-03): Two press releases issued by the New York State Public Service Commission
- Exhibit__(ERM-04): Act 59 of 2025 of the Westchester County Board of Legislators

PURPOSE OF TESTIMONY

Q. Why is the participation of Westchester County's government relevant in this case?

A. Westchester County is home to over one million people, according to the 2020 U.S. Census.[1] There are approximately 349,000 Con Ed residential and commercial electric customers in the County and 232,000 residential and commercial gas customers, according to the Company's website.[2] As the duly elected officials representing the residents of Westchester, County Executive Jenkins and the 17 members of the Board of Legislators are in close and regular contact with residents and understand the issues they are confronting and how people are impacted by the economic pressure caused by increases in utility

[1] https://www.census.gov/quickfacts/fact/table/westchestercountynewyork/POP010220
[2] https://www.coned.com/en/business-partners/service-territories

payments. These increases are compounded by the steep rises in inflation and cost of living that have occurred over the past several years. Constituents who may not have the time or comfort to speak at a public hearing about the impact of Con Ed's proposed rate increase frequently do feel comfortable contacting their local elected officials, so Westchester County's elected leaders bring an additional perspective on the needs of their constituents that may not otherwise be reflected in the evidentiary record.

WESTCHESTER COUNTY PORTION OF CON EDISON REVENUE

Q. What percent of Con Edison's total ratepayers are Westchester County ratepayers?

A. 10.3% of the Company's ratepayers have service addresses in Westchester. (Exhibit__(ERM-01), 11)

Q. How much are Westchester County ratepayers paying to Con Edison, and is that amount proportional to the share of the service area that Westchester represents? That is to say, are Westchester County ratepayers providing more than 10.3% of the Company's revenues?

A. This is not known, because the Company asserts that it does not track its revenues by region. (Exhibit__(ERM-01), 1)

Q. In the opinion of Westchester County government, should the Company be tracking the source of its revenue by region?

A. Yes, because the lack of data on where the Company's revenue comes from makes it impossible to determine whether ratepayers in Westchester are subsidizing the construction of improvements in other parts of the Company's service area and whether Westchester ratepayers are seeing a proportional return on the money paid to the Company.

Q. What do you think the Company should do to address this issue?

A. The Company asserted (Exhibit__(ERM-01), 1) that tracking revenues by region would require a "special study." Westchester County questions whether it could really be true that the Company lacks any current means to ascertain the location of its ratepayers and aggregate data by geographic region, since the Company presumably has databases or systems that include the address for each ratepayer's account. Moreover, the Company's response to the Department of Public Service (Exhibit__(ERM-02), 3-7) is proof that the Company, at the very least, can break their customers down by County with respect to language, and the Company's response to Westchester County's informational request regarding the share of County customers in arrears, (Exhibit__(ERM-01), 10) shows that the Company's systems allow it to identify the percent of customers in a particular

county who are currently in arrears. However, taking the Company at its word that it cannot track revenues by geographic area, the County proposes that the Company modify its systems to allow for the routine tracking of revenue by County so that this basic data will be available to regulators, parties, and members of the public in future rate cases.

REVENUE AND COMPANY SPENDING

Q. Has the Company received substantial rate increases in recent years?

A. Yes, as described in Exhibit__(ERM-03), 1-6 in 2020, the Public Service Commission approved a first-year electric rate increase of $113.3 million, or 3.1 percent, and a first-year gas rate increase of $47.2 million, or 6.7 percent. In the second year, the PSC approved an increase in electric revenues of $370.3 million, or 3.8 percent, and an increase of $326.4 million, or 3.3 percent in the third year. Gas revenues in the second year were approved for an increase of $176.3 million, or 7.3 percent, and an increase of $170.3 million in the third year, or 6.5 percent. In 2023, the Public Service Commission approved "a levelized electric rate increase of $457.5 million for each of the three rate years" and "a levelized gas rate increase of $187.2 million for each of the three rate years."

Q. How much does the Company spend on advertising?

A. Over the 5-year period from 2020-2024, the Company spent $53.9 million on "informational advertising" according to its response to one Westchester County's information requests. (Exhibit__(ERM-01), 17) Westchester County questions why a Company that is in effect a regulated monopoly with no need to compete for business needs to spend in excess of $10 million a year to promote itself, while many ratepayers are struggling to meet basic needs due to high utility bills. The County proposes that the budget for future self-promotion by Con Edison should be redirected towards efforts that will directly benefit ratepayers through the provision of more reliable energy and gas service.

COMPANY COMPENSATION

Q. What is the median compensation of the Company's employees?

A. The median salary of a Con Edison employee was $121,962 in 2020, $127,902 in 2021, $136,892 in 2022, $135,638 in 2023 and $128,713 in 2024. (Exhibit__(ERM-01), 6-7)

Q. Will Con Edison be raising the salaries of its workforce in the coming years?

A. Yes, according to the Company (Exhibit__(ERM-01), 8), under the terms of the "Local 1-2 collective bargaining agreement," employees covered by this

agreement will receive wage increases of 4% in 2025, an additional 4% in 2026, and an additional 4.25% in 2027.

Q. How much are the highest paid Con Edison employees compensated?

A. According to the Company, the ten highest paid employees of the Company all earned more than $400,000 in 2023 and at least $433,000 in 2024. (Exhibit__(ERM-01), 3-4) The highest paid employee of the Company had an annual salary of $1.4 million in 2024. These highly paid executives likely also receive additional compensation in the form of Company stock options and health benefits, though the precise value of non-salary compensation received by the highest paid Con Ed employees is not known because the Company asserted in its response to WC-33 that they do not "track the cost of healthcare and other benefits by individual employee." (Exhibit__(ERM-01), 16)

Q. Will Con Edison be raising the salaries of its highest paid employees in the coming years?

A. While one of the Company's responses to Westchester County's informational requests states that the specific raises for management employees have not been set for the 2025-2029 period, it notes that, "Historically, salary increase budgets for the Company's management population has been approximately 3%." (Exhibit__(ERM-01), 5) Therefore, by the Company's own account, it is likely

that these already very highly paid management employees will see further increases over the years covered by this rate increase request.

Q. How much did Con Edison shareholders receive in dividends from the Company in 2024?

A. The Company paid total dividends to its shareholders of $1.1 billion in 2024. Though the precise amount is unclear, some of this amount was likely paid to executives who may also be shareholders as part of their compensation packages. (Exhibit__(ERM-01), 9)

AFFORDABILITY CONCERNS

Q. What is the median income in Westchester County?

A. According to the 2023 American Community Survey (the most recent government data available), the median earnings of Westchester residents aged 16 and over who reported earnings in was $61,823.[3]

Q. What other measures can be used to show whether Westchester County families are facing financial difficulties?

[3]https://data.census.gov/table/ACSST1Y2023.S2001?q=westchester+county+individual+income

A. One widely respected measure is known as A.L.I.C.E. and is used to measure the number of households who are **A**sset **L**imited, **I**ncome **C**onstrained, **E**mployed. The ALICE index calculates how many households in a given area earn enough to meet "The ALICE Household Survival Budget" which is "the bare minimum cost of household basics necessary to live and work in the current economy. These basic budget items include housing, child care, food, transportation, health care, and technology, plus taxes and a contingency fund (miscellaneous) equal to 10% of the household budget."[4] The United Way of Westchester and Putnam Counties describes ALICE as follows: "ALICE households [are households] that earn more than the Federal Poverty Level, but less than the basic cost of living for the county (the ALICE Threshold). Combined, the number of ALICE and poverty-level households equals the total population struggling to afford basic needs."[5]

As of 2023, using the ALICE index, 38% of households in Westchester do not earn enough to afford the minimum costs of household basics represented by the ALICE household survival budget. Among historically marginalized communities, the number of workers who do not earn enough to afford minimum

[4] https://www.unitedforalice.org/methodology and file:///C:/Users/earm/Downloads/ALICE-Methodology-final-May-2025.pdf
[5] https://www.uwwp.org/alice/

household costs is even higher; 53% of Black households and 52% of Hispanic households in Westchester do not earn enough to meet basic household necessities, compared to only 30% of White households.[6]

Q. What percent of ratepayers in Westchester are currently in arrears on their Con Edison bills?

A. The Company states that 9.6% of ratepayers in Westchester County are in arrears. (Exhibit__(ERM-01), 10)

Q. How many ratepayers in Westchester County were behind on their utility bills by 60 days or more as of December 31, 2024?

A. According to the Company, 46,387 customers in Westchester were behind on their utility bills by 60 days or more as of December 31, 2024. (Exhibit__(ERM-01), 15) Since the Company has 349,000 customer accounts in Westchester County,[7] this suggests that approximately 13% of customers are at least 60 days behind on their bills.

[6] https://www.uwwp.org/wp-content/uploads/2025/05/2025ALICE-Westchester-1.pdf
[7] https://www.coned.com/en/business-partners/service-territories

Q. So while tens of thousands of customers in Westchester are unable to earn enough to pay their utility bills, Con Edison's shareholders received over $1.1 billion in dividend payments?

A. Yes.

Q. Are any demographic groups within the County particularly impacted by the Company's rate hike proposal?

A. Yes, according to the US Census Bureau, the poverty rate among Black/African-American residents of Westchester is approximately triple the poverty rate among White residents, and the poverty rate among Hispanic/Latino residents of Westchester is approximately two and a half times the poverty rate of Non-Hispanic White residents. Since the impact of a significant rate increase will undoubtedly fall hardest on those residents who are already below the poverty line, approval of the Company's proposed rate increase will disproportionately burden the members of historically marginalized communities in the County.[8]

Q. From the data referenced in the prior questions, what conclusions can you draw about the Company's proposal for a rate increase?

[8] https://www.westchesterindex.org/economic-security/people-living-in-poverty-by-race-ethnicity#:~:text=Poverty%20rates%20were%20highest%20in,to%20the%20state%20and%20nation.

A. Inflation over the past 5 years has risen at the fastest pace in more than 40 years[9] and economic analysts project that uncertainty over federal trade policy is likely to drive further increases in inflation over the next year.[10] Many Westchester County residents are struggling. Even among those with full-time employment, nearly a third earn less than needed to meet basic household expenses such as housing, food, childcare, etc. That many County residents are struggling is also indicated by the fact that according to the Company's own data nearly 1 in 10 ratepayers in Westchester are in arrears, with approximately 13% of ratepayers behind by 60 days or more on their bills. At the same time, Con Edison's top employees are earning salaries ranging from $433,000 to $1.4 million, (Exhibit__(ERM-01), 3-4) with further annual increases likely, and even the median employee for the Company earns a salary more than double (Exhibit__(ERM-01), 6-7) the median income of a Westchester County resident. Those median salaries, already more than twice the County median, are poised to increase by a further 12.25% in the next three years. (Exhibit__(ERM-01), 8)

Westchester County's elected leaders believe that the Company's request for a substantial rate increase on a County where so many residents are already unable to make ends meet, at the same time as the Company's own employees and

[9] https://www.usinflationcalculator.com/inflation/historical-inflation-rates/
[10] https://www.reuters.com/world/us/fed-minutes-saw-rising-inflation-jobless-risks-may-meeting-2025-05-28/

shareholders continue to receive increasing salaries and dividend payouts cannot be justified in the public interest. Westchester County's leaders urge the Public Service Commission to reject the rate increase amount that Con Edison is seeking.

ADDRESSING SYSTEM RELIABILITY

Q. Tropical Storm Isaias, which struck Westchester County in August, 2020 and Hurricane Ida, which struck the County in early September, 2021, both caused significant damage due to flooding and high winds, including large numbers of power outages for ratepayers in Westchester. Can you describe the impacts of these storms on County residents?

A. Yes, at least 20,000 customers in Westchester lost power in the wake of Hurricane Ida and the number of customers who lost power as a result of Tropical Storm Isaias was even larger.[11] Con Ed reported in 2020 that the number of outages in its service area was the second largest in history, behind only Superstorm Sandy.[12] In 2020, a total of 106,340 ratepayers in Westchester experienced power outages lasting more than 24 hours, the overwhelming

[11] https://nypost.com/2021/09/02/hurricane-ida-leaves-nearly-130k-in-ny-nj-ct-without-power/
[12] https://www.nytimes.com/2020/08/05/nyregion/isaias-hurricane-storm-damage-ny-nj.html

majority of which were due to Tropical Storm Isaias. In 2021, 6,528 ratepayers in the County experienced a power outage of more than 24 hours. While only a fraction of the number of impacted households from Tropical Storm Isaias, the outages caused by Hurricane Ida were still substantial; in fact, the total number of Westchester ratepayers who lost power for 24 hours or more in the next three years combined (2022-2024) was lower (4,397) than in 2021 alone. (Exhibit__(ERM-01), 12)

Q. There is increasing consensus among climate scientists that the impacts of climate change are increasing the frequency and severity of extreme weather events, making it highly likely that Westchester will be impacted by future storms like Ida, Isaias, Sandy, and Irene. Understanding that future severe storms are likely in the service area, has the Company responded to past damaging storms by taking steps to harden its infrastructure by burying power lines?

A. It is our understanding that between 2020-2024, the Company buried a total of 3.65 miles of power lines in Westchester County. (Exhibit__(ERM-01), 2)

Q. Does the Company have further plans to bury power lines in Westchester County, and if so, can you describe when and where this work will take place?

A. Unfortunately, the answer to the question is unclear. The Company stated that no work on burying power lines in Westchester is planned for 2025 and that

"specific circuits or segments for undergrounding in 2026-2029 have not yet been selected and will require further engineering analysis." (Exhibit__(ERM-01), 13) The Company further that "the Company does not have specific roads or areas that are the focus of potential projects." (Exhibit__(ERM-01), 14)

Q. In your opinion is this sufficient progress to avoid future power outages following major storms?

A. No. In the wake of some of the most damaging weather events in New York's history, Westchester County's leaders are deeply concerned that the Company has proceeded so slowly to harden its infrastructure by burying power lines. While the County's elected leaders recognize the expense involved in conducting this work, burying an average of less than three quarters of a mile of lines per year is unacceptable. It calls into question whether the Company is adequately prioritizing the prevention of mass power outages for its Westchester customers.

Furthermore, the lack of any specific short-term plans for 2025 and the vague nature of any possible medium-term plans in 2026-2029 for further line burying work in Westchester is deeply troubling as it raises the question of whether the Company will even be able to match the already insufficient amount of power lines buried in the 2020-2024 period during the years covered by the present rate increase proposal.

PROPERTY TAXES

Q: How does New York City assess Con Edison for property taxes?

A: According to statements made by the Company (see Con Ed Recommendations for Property Tax Reform | Con Edison)[13], Con Edison customers pay taxes on both the tangible property in the public right of way, as well as the value of the franchise right, and the authority or permission to occupy such public spaces. This results in a tax bill that contributes significantly to higher utility rates for customers. According to the Company: "Through these taxes, fees and other special assessments, New York City is undoubtedly the largest financial beneficiary of the NYC energy system."

Q: How does New York City's method of assessing Con Edison for property taxes impact ratepayers?

A: According to statements made by the Company (see Con Ed Recommendations for Property Tax Reform | Con Edison)[14], utility bills include charges for property taxes which are collected on behalf of the taxing jurisdiction.

[13] https://www.coned.com/en/about-us/media-center/news/2022/11-15/regarding-the-recommendations-of-the-advisory-commission-on-property-tax-reform
[14] https://www.coned.com/en/about-us/media-center/news/2022/11-15/regarding-the-recommendations-of-the-advisory-commission-on-property-tax-reform

These include taxes on the pipes, wires and other infrastructure that deliver energy throughout the jurisdiction. According to the Company: New York City property taxes play a large role in driving bills higher for rate payers. "Con Edison customers, as a class, are undeniably the largest property taxpayer in the City and the NYC property taxes in their bill have increased steadily from roughly $500M in the year 2000 to almost $2.5B in 2023 – that's more than a 300% increase."

Q: What is the amount of forecast property taxes paid by Con Edison in New York City and Westchester County?

A: According to one of the Company's response to the Westchester Municipal Coalition's informational requests, Con Edison paid $2,285,405,000 in New York City property taxes for the Historic Test Year (2024) and forecasts paying $2,996,449,000, $3,254,850,000 and $3,529,166,00 in City property taxes in 2026, 2027 and 2028, respectively. (Exhibit__(ERM-02), 1-2)

In 2024, the Company paid $230,659,000 in non-New York City property taxes, nearly all of which would have been in Westchester County. They forecast paying $267,245,000, $283,655,000 and $301,815,000 in non-New York City property taxes in 2026, 2027 and 2028, respectively. (Exhibit__(ERM-02), 1-2)

Q: Do Westchester customers incur the same volumetric charges in delivery rates for recovery of New York City property taxes as New York City customers incur; or are recovery rates differentiated by jurisdiction such as the case with revenue taxes?

A: According to one of the Company's responses to the Public Utility Law Project's (PULP) informational requests, "The Company designs delivery rates by customer service class and not by jurisdiction. As such, there is no distinction between the costs embedded in the revenue requirement of different jurisdictions (*i.e.*, New York City and Westchester)." (Exhibit__(ERM-02), 8)

Q: Is Con Edison's failure to differentiate between taxing jurisdictions significant to Westchester County customers?

A: Yes. Westchester customers have expressed concern and frustration that they may be unfairly subsidizing New York City for the recovery of Con Edison property taxes paid to the City. Westchester County will be continuing to analyze the extent to which this may be the case in preparation for rebuttal testimony and thereafter.

WESTCHESTER COUNTY RESIDENTS' CONCERNS

Q: Have Westchester County residents reached out to their elected representatives to express outrage, concern and confusion over their Con Edison bills?

A: Yes, elected officials in Westchester have received hundreds of complaints about their Con Edison bills from constituents. Residents have directly contacted local legislative offices and engaged with their elected officials at neighborhood and community events to express their shock at unexpected bill increases, their frustration over what they perceive as a lack of transparency in billing practices, and their desperation as they struggle to afford basic electricity service while still paying for necessities such as property taxes, rent, or food much less discretionary expenses such as entertainment or travel. The volume and urgency of these complaints has prompted multiple public input sessions and inquiries, indicating this is not an isolated issue but a widespread crisis affecting households across economic lines throughout the county.

Q: How have Westchester County residents on fixed incomes characterized the impact of Con Edison bills on their households?

A: Elected officials in Westchester have received numerous complaints from constituents who are senior citizens and/or on disability saying their bills have increased dramatically. These vulnerable residents frequently report being forced to choose between paying for electricity/gas and purchasing medications, groceries, or other essential needs. Many describe turning off heat in winter

months to reduce costs, leading to health risks and uncomfortable and unsafe living conditions. Some residents living on a fixed-income have reported that their monthly Con Edison bills now consume 30-50% of their total income, forcing some to consider selling their homes and relocating out of Westchester County. The financial strain has created a cascade of hardships, with some residents falling behind on property taxes, medical bills, and other obligations as they prioritize keeping their electricity/gas connected.

Q: Do Westchester County residents report sharper increases in their supply charges or delivery charges?

A: Many Westchester residents have expressed to their legislators concern and confusion about why their bills reflect delivery charges that are so much higher than their supply charges. Constituents report that while their supply charges have remained relatively stable or increased modestly, their delivery charges have doubled or tripled over recent months. This dramatic disparity has left residents questioning the legitimacy of their bills, with many wondering if there are errors in the billing system. The delivery charges often represent 60-70% of the total bill, creating confusion about what services justify such steep increases in costs when the actual electricity/gas being delivered costs significantly less.

Q: Do Westchester residents report that increasing energy efficiency and reducing thermostats meaningfully lowers their utility bills?

A: No, many Westchester residents have shared with County elected officials that despite lowering the temperature of their homes and investing in better insulation, the size of their bill continues to escalate, driven by rising delivery charges. Residents report making significant lifestyle changes and capital investments in energy-efficient appliances, smart thermostats, and weatherization improvements, with the hope of reducing their utility bills only to find that their bills are growing rapidly because their delivery charges continue increasing. This state of affairs has created widespread frustration and confusion, as residents feel penalized despite their conservation efforts. The disconnect between usage reduction and delivery charge savings has led to questions from residents whether the delivery charge structure is fair or if there are fundamental flaws in how these fees are calculated and applied.

Q: In addition to their attempts to increase energy efficiency of their homes, what measures have Westchester County residents reported taking in an attempt to reduce their energy costs?

A: Several Westchester residents shared with members of the Board of Legislators that they have begun using their fireplaces more frequently, despite the fact that burning wood produces emissions that are widely recognized as

harmful to human health and contributors to global climate change. Residents also said they wear coats, hoodies and hats inside their homes in order to stay warm with their thermostats set at much lower temperatures.

Q: Do the Westchester County residents who have communicated with County elected officials typically understand the components of delivery charges on their utility bills?

A: No. A large majority of constituents who have communicated with County elected officials do not appear to understand components of delivery charges. Residents describe their utility bills as incomprehensible documents filled with acronyms, regulatory fees, and line items that lack clear explanations. Many constituents have requested detailed breakdowns of what specific services or infrastructure improvements justify various delivery charge components, but report difficulty obtaining satisfactory explanations from Con Edison customer service representatives. This reported lack of transparency has eroded trust and left customers feeling helpless to challenge charges they cannot understand or verify.

Q: Do Westchester County residents who have contacted their elected officials report that estimated billing amounts are comparable to actual usage?

A: No, according to constituent communications, estimated billing amounts often far exceed the actual meter readings. Constituents report receiving estimated bills that are 200-400% higher than their typical usage patterns, with some receiving bills for thousands of dollars based on projections rather than actual consumption. When meters are finally read, the discrepancies are often enormous, requiring lengthy correction processes. These inflated estimates have caused severe financial hardship for residents who must pay the estimated amounts upfront, creating cash flow problems and forcing many to seek emergency financial assistance or payment plans.

Q: Do Westchester County residents who have contacted their County elected officials find it easy to get refunds from Con Edison for overages paid on estimated billing?

A: No. For example, one County resident shared that she waited nearly a year to get $1800 back. The refund process is described by constituents as bureaucratic, time-consuming, and often requiring multiple phone calls, written requests, and persistent follow-up. Many residents report being transferred between departments, having to re-explain their situations repeatedly, and receiving conflicting information about refund timelines and procedures. Some customers have had to engage attorneys or seek assistance from elected officials to recover

overpayments, while others have simply given up after months of unsuccessful attempts to navigate the refund system.

Q: What is the purpose of including the above presented descriptions of comments from Westchester County residents?

A: The County is not asserting that these comments are necessarily representative of the experiences of all Westchester County ratepayers, but feels it is important to share these anecdotes which capture the context and tone of what Westchester County elected officials have been hearing from their constituents around the County, and to illustrate why the County Executive and Board of Legislators felt compelled to intervene in this proceeding in order to protect the interests of many of their constituents. It should also be noted that these comments were presented to Westchester elected officials in their capacities representing Westchester constituents and if stricken from the evidentiary record, would not otherwise be found in the Public Comments submitted to the Company or the Public Service Commission.

Q. Do you have anything further to add to the record?

A. Not at this time. Thank you for the opportunity to provide testimony for these rate cases.